PURPOSE CAPITAL
Guiding Capital with Purpose

CODE · GOVERNANCE

Internal Rules of the Board of Directors

Version **0.9** DRAFT

Owner	Chairman of the Board of Directors
Next review	12 months after adoption
Confidentiality	Internal

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Purpose Capital S.A.
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Courtesy translation — the French version prevails.
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Title	Internal Rules of the Board of Directors		
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APPROVAL WORKFLOW

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REVISION HISTORY

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REFERENCE TEXTS

OHADA Uniform Act on Commercial Companies and Economic Interest Groups (AUSCGIE) Official page · ohada.org	Board of directors of a public limited company (société anonyme): composition, notice of meetings, quorum and majority, remote participation, minutes and attendance register, related-party agreements (Art. 438 et seq.), Chairman of the Board and Chief Executive Officer
COSUMAF General Regulation of 23 May 2023 Official text · cosumaf.org	Prior approval of changes subject to authorisation (Art. 77); annual internal control report and risk map presented to the Board and then sent to COSUMAF before 31 March (Art. 5)
Regulation No. 01/22/CEMAC/UMAC/CM/COSUMAF of 21 July 2022 Official page · cosumaf.org	Organisation and obligations of intermediaries on the regional financial market
G20/OECD Principles of Corporate Governance (2023) Official text · oecd.org	International good practice: board responsibilities, independence, information and evaluation
Basel Committee — Corporate governance principles for banks (2015) Official text · bis.org	International good practice: role of the board in overseeing risk, compliance and internal control
AFEP-MEDEF Corporate Governance Code of Listed Corporations (France)	Comparable jurisdiction: board internal rules, independent directors, committees, board evaluation, directors' code of ethics

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Title I — General provisions

Article 1 — Purpose

These rules set out how the Board of Directors of Purpose Capital S.A. (the "Company") organises its work: what it decides, how it meets, what is expected of each director and how the Board evaluates its own effectiveness.

They supplement the articles of association and the OHADA Uniform Act on the law of commercial companies. In the event of conflict, the articles of association and the law prevail. These rules cannot be relied upon against third parties.

Article 2 — Why these rules

The Company is a brokerage firm (société de bourse) licensed by COSUMAF. Its governance is a component of its licence: COSUMAF checks that the Board meets, that it genuinely oversees senior management, risks and internal control, and that the functions of Chairman and Chief Executive Officer are performed by different persons. Brokerage firms in the sub-region have lost their licence for failing to comply with these requirements.

Article 3 — Adherence

Each director, and the permanent representative of each corporate director, receives these rules upon appointment and declares their adherence to them. The same applies to the Chief Executive Officer and to the Board secretary.

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Title II — Duties and composition

Article 4 — Duties of the Board

The Board of Directors determines the Company's strategic direction and ensures that it is implemented. It exercises the powers conferred on it by law and by the articles of association, and in particular:

1. **strategy**: it approves the strategic plan and the annual budget, and monitors their implementation;
2. **senior management**: it appoints and removes the Chairman and the Chief Executive Officer, sets their powers and remuneration, and evaluates the Chief Executive Officer annually;
3. **risks and internal control**: it approves the risk appetite statement and limits (Risk Management Policy), reviews the risk and internal control dashboard every quarter, approves the annual internal control report before it is sent to COSUMAF, and commissions the annual independent review (Internal Control and Compliance Charter);
4. **the Company's rules**: it approves the codes and policies of the document repository;
5. **the accounts**: it approves the annual financial statements and the management report, and convenes the general meeting;
6. **major transactions**: it authorises related-party agreements, sureties, endorsements and guarantees, and any transaction exceeding the powers delegated to the Chief Executive Officer;
7. **relations with COSUMAF**: it ensures that any change subject to COSUMAF approval (articles of association, share capital, shareholding, senior management, registered office, business plan, statutory auditors) is presented to it before being initiated.

Article 5 — Composition

The Board has between three and twelve directors, in accordance with the Uniform Act and the articles of association. It seeks a balanced composition: knowledge of financial markets, finance, law, risk management and the CEMAC zone.

A corporate director appoints a permanent representative, who has the same duties as a director acting in their own name.

Article 6 — Independent director

A director is **independent** where they have no relationship with the Company, its significant shareholders or its senior management that could impair their judgement: they are not, and have not been in the last three years, an employee or senior manager of the Company; they hold no more than 10% of the share capital and do not represent a shareholder who does; they are not a significant client or supplier; they have no close family tie with a senior manager.

The Board endeavours to include at least one independent director. Each year it reviews the situation of each director against these criteria.

Article 7 — Separation of management functions

The functions of **Chairman of the Board of Directors** and **Chief Executive Officer** are performed by two different persons. The Board ensures that the Company has at all times at least two senior managers (dirigeants effectifs) recognised by COSUMAF, and that any appointment or departure of a senior manager is submitted to COSUMAF in good time.

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Title III — The director

Article 8 — Diligence

The director devotes the necessary time to their role. They prepare for meetings by reading the documents received, attend meetings and ask relevant questions. They acquire training in the rules of the regional financial market and in the Company's obligations; training is offered to them upon appointment and annually thereafter.

A director who has been absent from more than half of the meetings in a financial year is asked about it by the Chairman.

Article 9 — Confidentiality

The director is bound by secrecy regarding information received in the course of their role, the Board's deliberations and votes, including after the end of their term of office. They never use such information for personal purposes or on behalf of a third party.

Board documents are sent through a secure channel designated by the Board secretary. The director does not forward them to a shared personal email account and destroys or returns them at the end of their term of office.

Article 10 — Inside information and personal transactions

The director regularly has access to inside information on the Company's clients, issuers and transactions. They are subject to the rules of the Code of Conduct on market abuse and personal transactions. They refrain from any transaction in a security about which they hold inside information, and declare their personal transactions in accordance with that Code.

Article 11 — Conflicts of interest

The director acts in the interest of the Company and its clients, never in that of a shareholder, a third party or their own.

1. Upon appointment, and then annually before 31 January, they complete the declaration of interests in Appendix “Director's declaration”, and update it upon any change.
2. Where an item on the agenda places them in a conflict situation, they declare it to the Chairman before the meeting, take part in neither the discussion nor the vote, and this is recorded in the minutes.
3. Any agreement between the Company and a director, a senior manager or a company that they control or manage follows the related-party agreement procedure of the Uniform Act: prior authorisation by the Board, without a vote by the person concerned, notification to the statutory auditors, approval by the general meeting.

These rules apply together with the Conflicts of Interest Policy (Conflicts of Interest Management Policy).

Article 12 — Loyalty and discretion

The director does not speak on behalf of the Company unless mandated by the Board. They inform the Chairman before accepting a directorship in a competing company or in an issuer for which the Company acts as adviser or placement agent.

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Title IV — The Chairman of the Board

Article 13 — Role of the Chairman

The Chairman organises and directs the work of the Board and reports on it to the general meeting. The Chairman:

- sets the agenda, after gathering proposals from the Chief Executive Officer and the directors;
- ensures that directors receive complete information in good time;
- conducts discussions so that everyone can express their views and decisions are taken on an informed basis;
- is the direct recipient of alerts from the RCCI and meets the RCCI, at least once a year, without Executive Management being present;
- receives the report of the annual independent review;
- ensures that relations between the Board and Executive Management work well.

The Chairman does not manage the Company: executive management is the responsibility of the Chief Executive Officer.

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Title V — Meetings

Article 14 — Schedule

The Board meets at least **four times a year** and whenever the Company's interest so requires, in accordance with the standard annual programme in Appendix “Board meeting programme”. At least one meeting a year is devoted to strategy. The schedule for the following year is set at the last meeting of the year.

Article 15 — Notice and agenda

The Board is convened by the Chairman, or at the request of at least one third of its members if it has not met for more than two months, **at least five days** before the meeting, by any written means, including electronic means. The notice follows the template in Appendix “Notice of meeting” and states the date, time, place, any connection link and the agenda.

In an emergency, the notice period may be shortened if all directors consent.

Article 16 — Remote participation

Where the articles of association so permit, directors may participate by videoconference or any telecommunication means that allows them to be identified and to participate effectively, with continuous and simultaneous transmission of the proceedings. They are then deemed present for the purposes of calculating the quorum and majority, except for decisions excluded by law or by the articles of association.

At the start of the meeting, the Chairman ensures that the technical means are working and that everyone can hear and be heard. Any technical incident interrupting a director's participation is recorded in the minutes.

Article 17 — Quorum, majority and proxies

The Board may validly deliberate only if at least half of its members are present. Decisions are taken by a majority of the members present or represented; in the event of a tie, the chair of the meeting has the casting vote, unless the articles of association provide otherwise.

A director may give another director a written proxy to represent them at a meeting. A director may hold only one proxy per meeting.

Article 18 — Minutes and register

The Board secretary keeps the attendance register, signed by the directors taking part in the meeting, and drafts the minutes using the template in Appendix “Board minutes”. The minutes state which directors were present, represented, excused or participating remotely, summarise the discussions, record the conflicts of interest declared, and set out the decisions and the results of the votes.

The draft is sent to the directors within fifteen days, approved at the following meeting, signed by the Chairman and at least one director, and then kept at the registered office. Extracts are certified by the Chairman or the Chief Executive Officer.

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Title VI — Information and work of the Board

Article 19 — Information for directors

Directors receive the documents needed for their decisions at least **five days** before the meeting. These documents are short, include a summary note and clearly state the decision required.

Between meetings, the Chief Executive Officer informs the Chairman without delay of any significant event: an incident affecting clients, a major internal control finding, a COSUMAF request or inspection, financial difficulty, significant litigation. The Chairman informs the directors.

Each director may ask the Chief Executive Officer for any document useful to their role and, after informing the Chairman, meet the RCCI, the statutory auditors or the independent review provider.

Article 20 — Committees

The Board may set up committees to prepare its decisions, and determines their composition and duties. Committees have no decision-making power.

As long as the Board remains small, it performs the duties of an audit and risk committee itself. If it sets up such a committee, the committee has at least two non-executive directors, is preferably chaired by an independent director, and:

- reviews the financial statements before their approval and hears the statutory auditors;
- monitors the effectiveness of internal control, risk management and compliance;
- hears the RCCI and the independent review provider, including once a year without Executive Management being present;
- monitors the implementation of recommendations from internal control, the independent review, the statutory auditors and COSUMAF.

Article 21 — Directors' remuneration

The general meeting allocates to the directors a fixed annual sum for their duties. The Board apportions it taking into account actual attendance at meetings and participation in committees. Substantiated travel expenses are reimbursed.

No non-executive director receives remuneration linked to turnover or to the result of a transaction.

Article 22 — Board evaluation

Once a year, the Board devotes an item on its agenda to its own functioning, based on a self-assessment using the grid in Appendix “Board self-assessment”. The Chairman presents a summary and the actions agreed. Every three years, the evaluation may be carried out with the assistance of an external facilitator.

Article 23 — Board secretariat

The Board appoints a secretary, who need not be a director. The secretary prepares and sends notices of meetings, keeps the attendance register, drafts the minutes, keeps the Board's archives and tracks the list of decisions and of actions requested of Executive Management.

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Title VII — Final provisions

Article 24 — Amendment

These rules are reviewed annually, at the time of the Board evaluation. Any amendment is adopted by the Board of Directors by a majority of its members.

Article 25 — Entry into force

These rules enter into force on the date of their adoption by the Board of Directors, as shown in the document control sheet.

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